# Legal Arguments: The Map

A classroom handout for Legal English students. Start with the map, work through the examples, then identify the arguments in the exercises.

Case studies and practical problems based on legislation and judgments. The legal setting is England and Wales, with one influential Australian appeal to the Privy Council. The Latin labels explain the reasoning; judges need not use those labels themselves.

| Family | Argument | Main question |
|---|---|---|
| Stronger reasons | **A fortiori** - the umbrella term | Does the conclusion follow with even stronger reasons? |
| A fortiori: subtype 1 | A maiori ad minus | Does permission for the greater include the lesser? |
| A fortiori: subtype 2 | A minori ad maius | Does a prohibition of the lesser also prohibit the greater? |
| Comparison | A simili / per analogiam | Should an unregulated similar case receive the same treatment? |
| Exclusion | E contrario / a contrario | Does an exhaustive rule exclude cases it does not name? |
| Unacceptable result | Ad absurdum | Would this reading produce an absurd or contradictory result? |
| System: consistency | A coherentia | Which reading avoids conflict between rules? |
| System: completeness | A completudine | Does the system supply an answer through a general or closing rule? |
| System: placement | A rubrica | What does the heading or position of the rule tell us? |
| Examples and decisions | Ab exemplo | Does a relevant example or previous decision support the conclusion? |

**Remember:** a fortiori is the family. A maiori ad minus and a minori ad maius are its two familiar subtypes. The other arguments are not further subtypes of a fortiori.

# A Fortiori and Its Two Subtypes

## 1. Argumentum a fortiori - stronger reasons

**How it works:** A conclusion has even stronger support in the second situation.

**Example:** Lord Atkin linked neighbourly love with avoiding injury in Donoghue v Stevenson (1932). For discussion: if we should positively seek our neighbour's good, we should at least avoid harming them. Donoghue won her appeal, 3-2, because the alleged facts could establish the manufacturer's duty. Facts and damages remained unresolved. [1]

**Check:** The moral comparison illustrates the form of reasoning, not a formal deduction of liability. Atkin also relied on legal authorities and limited the duty.

## 2. A maiori ad minus - greater to lesser

**How it works:** A greater legal power may include a lesser power within it.

**Example:** A photographer may assign copyright to a publisher. May the photographer transfer only the reproduction right, while keeping other rights? Yes: section 90(2) of the Copyright, Designs and Patents Act 1988 expressly permits a partial assignment. [2]

**Check:** The statute confirms the greater-to-lesser structure; we do not pretend a court had to infer it. The assignment must comply with the writing and signature requirements.

## 3. A minori ad maius - lesser to greater

**How it works:** If a lesser harmful act is forbidden, stronger reasons support prohibiting a greater harmful act.

**Example:** A protected wild animal may not intentionally be injured. There is an even stronger protective reason against intentionally killing it. Section 9 of the Wildlife and Countryside Act 1981 expressly covers both injury and killing for the animals protected in this way. [3]

**Check:** Check the species, the applicable protection and statutory exceptions. A penal prohibition cannot simply be enlarged by analogy.

## Two sentences to remember

**Cui licet quod est plus, licet utique quod est minus.**
Whoever may do the greater may also do the lesser.

**Plus semper in se continet quod est minus.**
The greater contains the lesser. These express the greater-to-lesser idea.

# Comparison, Exclusion and Absurdity

## 4. A simili / per analogiam - analogy

**How it works:** Identify the legally important similarity between cases.

**Example:** In Grant v Australian Knitting Mills [1936] AC 85, underwear containing a harmful chemical caused dermatitis, a skin disease. The Privy Council applied the manufacturer-duty principle from Donoghue v Stevenson: a hidden danger in a manufactured product could injure the consumer. Grant won; the manufacturer was liable in negligence and the retailer in contract. [4]

**Check:** This was application of an existing principle to a different product. A drink and underwear are different; the hidden risk to the consumer was the relevant similarity.

## 5. E contrario / a contrario - the opposite conclusion

**How it works:** An exhaustive legal category may exclude the cases outside it.

**Example:** Section 1 of the Family Law Reform Act 1969 sets the age of majority at 18. A 17-year-old therefore does not have full adult status under that rule. The conclusion follows from the defined age boundary. [5]

**Check:** This does not mean that a 17-year-old has no rights or can never make a valid contract. Other rules may confer particular rights before adulthood.

## 6. Ad absurdum - an absurd result

**How it works:** Reject a reading that would defeat the operation or purpose of the provision.

**Example:** In Adler v George [1964] 2 QB 7, Adler obstructed a police officer inside an RAF station. He argued that he was not “in the vicinity of” the station because he was inside it. The court rejected a reading that punished nearby obstruction but excluded obstruction inside. The prosecution won; Adler's appeal was dismissed and his conviction stood. [6]

**Check:** The court read the phrase in context. An undesirable result alone does not authorise ignoring statutory wording. This is a historical case, not a statement that the 1920 provision remains in force.

# System, Context and Previous Decisions

### 7. A coherentia - consistency

**How it works:** Read related provisions so they work together.

**Example:** A buyer receives a faulty laptop and asks the seller to repair it. The Consumer Rights Act 2015 provides a short-term right to reject, but section 23(6) normally requires reasonable time for an agreed repair before that right is exercised. The provisions must be read together, including the exception for significant inconvenience. [7]

**Check:** The aim is to understand the whole remedial scheme, not assume that one right cancels every other right.

### 8. A completudine - completeness

**How it works:** Look for the answer supplied by general legal principles when no specific rule names the exact situation.

**Example:** A repair shop sends a price quotation by messaging app and the customer clearly accepts it. The absence of a special “messaging-app contracts” rule does not leave the issue unanswered: ordinary contract-formation principles determine whether an agreement exists. [8]

**Check:** Check the offer, acceptance, consideration and intention to create legal relations. The system may answer “no contract”; completeness does not mean every claimant succeeds.

### 9. A rubrica - heading and placement

**How it works:** Use the chapter and surrounding provisions to understand a rule's scope.

**Example:** A student asks whether section 9 of the Consumer Rights Act 2015 requires a solicitor's advice to be “of satisfactory quality”. Section 9 sits in Chapter 2, “Goods”. Services are addressed separately in Chapter 4, including reasonable care and skill under section 49. [7]

**Check:** Read the operative wording and definitions too. A chapter heading supports the distinction; it does not override the text.

### 10. Ab exemplo - a previous decision

**How it works:** Use a relevant decided case as support for the conclusion.

**Example:** A lawyer advising a consumer injured by defective clothing can point to Grant v Australian Knitting Mills. Grant won because the hidden chemical defect caused his injury and the manufacturer breached its duty of care. That decided case supports analysis of a comparable product claim. [4]

**Check:** Grant was an Australian appeal to the Privy Council. In England and Wales it is an influential authority, not automatically a binding domestic precedent. Compare the facts and legal requirements.

# Classroom Practice

Work in pairs. Identify the **most direct argument** in each situation. Explain your answer in one sentence. The situations appear in a different order from the explanations.

**A.** A garden notice says: “Keep off the grass.” Its purpose is to protect the lawn. Ben says that digging holes in the lawn must be prohibited for an even stronger reason.

**B.** A company reimburses train fares for business trips. Eva asks it to reimburse an intercity coach fare too: both are reasonable costs of travelling to meet a client.

**C.** A workplace rule says that employees must arrive rested and fit for duty. A worker arrives seriously impaired after drinking. His supervisor says this is an even stronger reason to consider him unfit than ordinary tiredness.

**D.** A museum prohibits eating in its exhibition rooms but expressly allows eating in its café. A visitor says that the two rules should be read together rather than treating all eating in the building as forbidden.

**E.** An owner may give away an entire collection of books. She reasons that she may also give away just three books from that collection.

**F.** A station has a “No running” notice to prevent collisions. Someone interprets it as requiring a passenger to stand still beside an approaching fire rather than run to safety. Another passenger rejects that interpretation.

**G.** A travel policy has a section called “Business Trips”. It says: “Taxi fares are reimbursed.” A manager uses the heading to explain why this does not cover an employee's private weekend taxi ride.

**H.** A luggage policy allows safe items unless they are on its prohibited-items list. A notebook is not mentioned. The general permission supplies an answer without a special notebook rule.

**I.** A rule reserves a particular grant for first-year students only. A third-year student therefore does not qualify under that rule.

**J.** A tenant's adviser cites an earlier judgment rejecting a deposit deduction for ordinary carpet wear. She uses it to support an argument against a deduction for ordinary wear to wall paint.

**Discuss:** A campsite bans smoking to prevent fires. Does that alone also prohibit lighting a campfire? Would your answer change if smoking was banned only to avoid tobacco smoke?

# Answer Key

**A. A minori ad maius; also a fortiori.** Digging holes is a more serious threat to the same protected lawn than walking on it. The stated protective purpose supports the inference.

**B. A simili / per analogiam.** The relevant similarity is a reasonable business-travel expense. Check whether the policy intentionally limits reimbursement to trains.

**C. A fortiori.** The worker's serious impairment provides stronger reasons for finding him unfit than ordinary tiredness. This is an evaluative stronger-reasons argument; no separate alcohol rule is needed to explain its form.

**D. A coherentia.** The location-specific ban and the café permission can operate together. The specific café rule also illustrates lex specialis.

**E. A maiori ad minus; also a fortiori.** The lesser disposal is included in the greater power, assuming the owner is free to give away the books and no special restriction applies.

**F. Ad absurdum.** The proposed reading would require a passenger to remain in danger and defeat the safety purpose of the notice. This is not permission to disregard every inconvenient rule.

**G. A rubrica.** The heading provides context: this section concerns business travel. Check the full wording and any separate policy for private journeys.

**H. A completudine.** A general closing rule answers the unlisted case. The relevant assumption is expressly supplied: safe items are allowed unless prohibited.

**I. E contrario / a contrario.** The word “only” makes the stated category exhaustive. Under this rule, students outside that category are excluded.

**J. Ab exemplo.** An earlier decision supplies support. A simili also helps explain why the two kinds of ordinary wear should receive comparable treatment.

**Campfire discussion:** If the aim is fire prevention, a minori ad maius may support a prohibition on an even greater fire risk. If the aim is avoiding tobacco smoke, the inference does not automatically follow. The common purpose and scope must be established.

**Remember:** A and E name the two familiar subtypes of a fortiori. C shows the broader stronger-reasons idea. More than one argument can contribute to a conclusion.

# Sources

Legislation and judgments establish the legal setting. The Latin classifications are teaching labels for the reasoning. A practical problem describes how a legal rule may be used; a named case describes an actual decision.

[1] Donoghue v Stevenson [1932] AC 562. House of Lords judgment. Open source

[2] Copyright, Designs and Patents Act 1988, section 90: assignment and partial assignment. Open source

[3] Wildlife and Countryside Act 1981, section 9 and Schedule 5: protection of certain wild animals. Open source

[4] Grant v Australian Knitting Mills [1936] AC 85, [1935] UKPC 2. Privy Council judgment reproduced by vLex. Open source

[5] Family Law Reform Act 1969, section 1: age of majority. Open source

[6] Adler v George [1964] 2 QB 7. Wiley case summary reproducing the court's reasoning and outcome. Open source

[7] Consumer Rights Act 2015: Part 1, Chapters 2 and 4; sections 9, 20, 23 and 49. Open source

[8] General contract-formation principles: RTS Flexible Systems v Müller [2010] UKSC 14, especially para. 45. The example uses the principles, not the facts of that case. Open source

Argument types: Z. J. Toth, The Methods of Statutory Interpretation in the Practice of the High Courts of Hungary. Open source

Argument types: C. Plantin, Dictionary of Argumentation, A / Ab Arguments; and O czym mówią prawnicy, on systematic arguments. Open source